FLAVIA AGNES: The right to practise religion and customary laws are part of the Fundamental Rights. And Fundamental Rights are more important than Directive Principles. I agree with the 21st Law Commission, which stated clearly that a UCC is "neither necessary nor feasible" as India is a vast, pluralistic country with diverse traditions and customs. For political reasons, it's being publicised that only a UCC will bring an end to issues such as polygamy among Muslims and a false impression is being created that non-Muslims are welcoming it. The truth is that all communities are opposing it. If the HUF property laws are touched, the entire Hindu community will be against it. Can the UCC promise to rid India of all prevalent social evils despite laws? If child marriage, domestic violence, dowry deaths, desertion of wives and their subsequent destitution, or bigamy among Muslims and Hindus cannot be addressed through it, what's the purpose of needlessly ruffling the feathers of all minority and marginalised groups? If we are serious about gender justice and have the interests of the most vulnerable women at heart, we need to go through the tedious exercise of recording the progress made within each of the personal laws, identify the gaps, and ensure each woman is provided support to access her rights. Creating a paper tiger of a UCC will not be of any use.

ASADUDDIN OWAISI: This country doesn't require a Uniform Civil Code. Why is everyone forgetting that a voluntary civil code already exists in India in the form of the Special Marriage Act, 1954; Indian Succession Act, 1925; Juvenile Justice (Care and Protection of Children) Act, 2015; Domestic Violence Act; and Section 125 of CrPC, 1973. Anyone who wants to be governed by these laws is free to do so. But if someone prefers to follow personal laws, it's their choice. In the Constituent Assembly debates, Ambedkar said the UCC would not be imposed on anyone, it would be a voluntary code. In fact, he said it would be a mad government that tries to impose it forcefully on Muslims and provoke them to rise in rebellion. ■



"Once the UCC is applied—as envisioned in the Constitution, not the BJP version—it will override any personal law contrary to Art. 14, which guarantees equality"

–COLIN GONSALVES

COLIN GONSALVES: The UCC is meant to remove all discriminatory practices against women found in personal laws. Once the UCC—as envisioned in the Constitution and not the BJP version—is applied, it will override all personal laws. Any personal law contrary to Article 14 of the Constitution, which guarantees every citizen equality before the law or the equal protection of the laws, becomes null and void. Uniformity in equality is always desirable. Uniformity is not about following one uniform custom. It's about ensuring uniform rights for all.

SAUMYA SAXENA: In the absence of a draft, it's difficult to say if there'll be any benefit. The UCC debate has to be read in the context in which it is taking place. I am sceptical of the template given that the government has individually opposed all moves towards marriage equality, be it their stated position on same-sex marriage, marital rape, live-in relationships or inter-religious marriages. If these concerns are included in the UCC, it will benefit citizens. There are many disadvantages that plague personal laws in their current form. Men and women have different grounds for divorce under some religious laws, others deprive women of inheritance if they marry outside the religion. I'd hope the UCC addresses all these concerns.

FLAVIA AGNES: Communities and vulnerable groups need their own legal protection. A uniform law, instead of bringing uniformity, may further marginalise them and render them more vulnerable. For instance, the tribal communities, who are given special protection under the Constitution, will lose those protections under a UCC. The aim should be uniformity of rights, not a uniform law. Equality can only be among equals. It was also envisaged that the UCC would be optional but now we appear to be moving towards a mandatory UCC without building a consensus among the affected groups.

ASADUDDIN OWAISI: It will not. It will violate the Fundamental Right to Equality. The fundamental right to the freedom of conscience, the freedom to profess, practise and propagate religion is at the heart of Indian pluralism. It is at the heart of what it means to be an Indian. By eliminating each community's personal laws, the BJP wants to create a legal system based on Hindi-Hindu-Hindutva. ■